



Appeal Decision

Site visit made on 15 September 2026

by **C Walker BA (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6009645

Grandview House, 94 Broad Street, Guildford, Surrey, GU3 3BE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
 - The appeal is made by Evan Leighton-Davis against Guildford Borough Council.
 - The application Ref is 25/P/01540.
 - The development proposed is described in the application form as 'construction of a chalet-style dwelling to replace approved incidental outbuilding (24/P/00189) at rear of Grandview House'.
-

Decision

1. The appeal is dismissed and planning permission is refused.

Applications for costs

2. An application for costs was made by Evan Leighton-Davis against Guildford Borough Council. The application is subject to a separate Decision.

Preliminary Matters

3. Although the description of development refers to replacing an outbuilding, this has not yet been built on site. I have assessed the scheme on that basis.
4. The appeal has been made against the Council's failure to determine the application within the statutory timeframe. However, the Council has indicated that, had it been in a position to issue a decision, it would have refused planning permission. The Council's concerns are set out in the Officer's Report and extend beyond the indicative reasons for refusal. Accordingly, in identifying the main issues, I have had regard to all of the concerns raised by the Council.
5. Since the submission of the appeal, a revised National Planning Policy Framework (the Framework) has been published. The main parties have been given the opportunity to make representations on this and I have taken these into account in determining this appeal.

Main Issues

6. In light of the above, the main issues are:
 - whether the proposal would be inappropriate development in the Green Belt, having regard to the Framework and any relevant development plan policies;
 - the effect of the proposal on the integrity of the Thames Basin Heaths Special Protection Area;

- the effect of the proposal on the ecological value of the site, with particular regard to trees and protected species;
- whether or not there is sufficient distance between Grandview House and the proposed dwelling to meet the privacy needs of both existing and future occupiers;
- the effect of the proposal on the character and appearance of the area;
- whether the proposal is capable of achieving the sustainable design objectives set out in the development plan; and
- if the development is inappropriate in the Green Belt, whether the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development in Green Belt

7. The appeal site lies within the Green Belt, as designated by the Policies Map of the Guildford Local Plan: Strategy and Sites 2015-2034 (2019) (GLPSS). Policy P2 of this sets out that Green Belt will be protected from inappropriate development in accordance with the Framework. The Framework sets out that development in the Green Belt is inappropriate unless it meets one of a list of exceptions set out in policy GB7.
8. The Framework Policy GB7(g) sets out that the development should not be regarded as inappropriate where all four of a list of criteria (i) to (iv) are met. These reflect the criteria set out at Paragraph 155 of the superseded 2024 Framework, where it is common ground that the appeal scheme is grey belt that meets three of these criteria. As such the dispute is focused on whether or not (iii) the development would be in a sustainable location, with particular reference to policy TR3 of the Framework.
9. The appeal site lies to the north of Broad Street in a backland location and is accessed via a private driveway. The Council contend that the ribbon of development fronting the northern side of Broad Street does not constitute a settlement in its own right, although it may reasonably be described as a hamlet. Regardless of its precise classification, the site cannot be regarded as isolated given its association with a substantial cluster of existing residential development.
10. Whilst there are no community facilities or services within the hamlet itself, a business park is said to be located approximately 400 meters (m) to the east. The nearest settlement is Wood Street Village to the west, where an infant school and post office are located around 800m and 1km from the site respectively. A wider range of services and facilities are available at Wood Street Green, approximately 1.6km away.
11. There is no dedicated footway along the private driveway serving the appeal site, and I note that its width narrows at certain points. Nevertheless, the driveway is not extensive, has good forward visibility and serves only a very limited number of dwellings. It is therefore likely to experience low levels of vehicular traffic. In these

circumstances, conflicts between pedestrians and vehicles would be infrequent and capable of being managed safely.

12. From the end of the private driveway, a pavement extends westwards towards Wood Street Village. Although pedestrians would be required to cross Broad Street at one point where the footway changes sides, and the route is not street lit, reducing its attractiveness during the hours of darkness and in inclement weather, it nevertheless provides a continuous and reasonably safe pedestrian connection to a limited number of local services and facilities.
13. In addition, there are several bus stops in close proximity of the site, one of which is situated adjacent to the end of the private driveway. These are said to be served by a pre-bookable demand-responsive bus service, operating seven days a week. Although the Council submits that eligibility criteria applies, no substantive evidence has been provided to demonstrate that future occupiers would be unable to access the service.
14. Taking these matters together, and recognising that opportunities to maximise sustainable transport choices will vary between urban and rural areas, I am satisfied that future occupiers would have realistic opportunities to travel by means other than the private car. Having regard to the Framework policy TR3, the proposal would occupy a reasonably sustainable location in the context of its rural surroundings and would not result in an unacceptable degree of transport-related unsustainability. Therefore, I conclude that the proposal accords with criterion iii) of Framework policy GB7. Policy ID3 of the GLPSS is largely consistent with the Framework and it therefore follows that I find no conflict with its objectives either.

- Conclusions on whether inappropriate development

15. As I have found that the proposal accords with all four criteria contained in the Framework policy GB7, it should not be regarded as inappropriate development in the Green Belt. Accordingly, I find no conflict with GLPSS Policies P2 or ID3. Given my findings, there is no need for me to consider the proposal against any other Green Belt exception criteria set out in the Framework, and it follows that I do not need to consider whether very special circumstances exist.

Integrity of the Thames Basin Heaths Special Protection Area

16. The site lies within the 400m to 5km zone of influence of the Thames Basin Heaths Special Protection Area (SPA). This is a European designated site, afforded protection under the Conservation of Habitats and Species Regulations 2017, as amended (the Habitat Regulations).
17. The SPA comprises heathland habitats that overlie sand and gravel sediments which give rise to sandy or peaty acid soils, supporting dry heathy vegetation on well-drained slopes, wet heath on low-lying shallow slopes and bogs in valleys. In turn this habitat supports important ground nesting birds, including the European nightjar, woodlark and Dartford warbler which are its qualifying features. The conservation objectives are to ensure the integrity of the site is maintained or restored as appropriate, and to ensure it contributes to achieving the aims of the Wild Bird Directive, by maintaining and restoring the extent, distribution, structure and function of the qualifying features.

18. The main threat to the SPA is through development pressures and additional recreational disturbance, resulting in damage and disturbance to the bird's habitat. The proposal would create a net gain of one dwelling and, in combination with other developments permitted in the area, there would be a likely significant adverse effect on this habitat site.
19. The Thames Basin Heaths SPA Avoidance Strategy 2017 Supplementary Planning Document (SPD) sets out a strategic approach to mitigation by pooling tariff style financial contributions made per dwelling, towards a range of mitigation and avoidance measures. These include the provision of suitable alternative natural green space, access management, signage and awareness raising. It is clear that a contribution towards these avoidance and measures is necessary to mitigate adverse impacts.
20. Planning permission can only be granted if, after taking account of mitigation measures in an appropriate assessment made under the Habitat Regulations, a decision-maker concludes the development would not adversely affect the integrity of the habitat sites. To come to such a conclusion, I must be satisfied beyond all reasonable scientific doubt that any adverse effect on the integrity of the habitat sites would be avoided.
21. In the absence of an effective mechanism before me through which the payment of the tariff could be secured, I do not have the necessary certainty that the adverse effects on the integrity of the SPA would be avoided. A condition would not be appropriate in this situation, and no planning obligation is before me.
22. Imperative reasons of overriding public interest of a social or economic nature are not present that would be sufficient to overcome the harm that would be caused to the SPA. In the absence of any mitigation, the proposal would be likely to increase recreational pressure, and thus would, in combination with other plans and projects, have a likely significant effect on the integrity of the site. Therefore, I must conclude that the proposed dwelling would have an adverse effect on the SPA, contrary to the Habitats Regulations and the Framework. The proposal would also be contrary to GLPSS Policy P5 and saved Policy NRM6 of the Southeast Plan 2009, the objectives of which are to avoid or mitigate potential adverse effects on the SPA.

Ecological value (trees and protected species)

23. A key objective of Policy ID4 of the GLPSS is to maintain, conserve and enhance biodiversity and seek opportunities for habitat restoration and creation. As a general principle, Policy P7 of the GLPDMP sets out that proposals, including those exempt from mandatory biodiversity net gain, are required to seek maximum biodiversity gain on site, balanced with delivering other planning priorities and to follow the mitigation hierarchy. It further sets out that tree canopies are expected to be retained, and that new tree planting is expected to focus on the creation of new connected tree canopies and/or the extension of existing canopies, unless doing so would adversely impact on sensitive species or habitats.

- Trees

24. Established and other vegetation line the majority of the appeal site boundaries, including a green corridor along the eastern boundary which extends northwards from the existing sweeping driveway. The submitted plans indicate that the

proposed dwelling and its associated hardstanding would extend up to, or close to, this boundary. No arboricultural survey, tree constraints plan, or tree impact assessment have been provided.

25. In the absence of such evidence, it is difficult to establish the extent to which existing trees and their root protection areas would be affected by the proposed development and what mitigation is therefore necessary. Whilst the trees and greenery do not appear to be of particularly high amenity value, as a group they nevertheless positively contribute to the character of the area and provide screening to the adjacent residential neighbour. From the submitted plans it is not apparent that the boundary trees could be retained without conflict arising from the construction of the dwelling, associated hard surfacing, and subsequent residential use of the site.
26. Although I am invited to impose a mitigating condition, doing so would be inappropriate because it could indicate that the dwelling should instead be re-sited to avoid the identified harm. Consequently, I cannot be satisfied that the development would safeguard existing trees or maintain the contribution they make to ecology and character. As such, the proposal would conflict with the expectations of Policy P7, which seeks the retention and protection of existing trees wherever possible.

- Protected species

27. The Habitat Regulations imposes a duty on decision makers to consider whether European Protected species would be affected by the development and whether associated mitigation measures would be effective. Great Crested Newts (GCN) is an example of such protected species.
28. The evidence before me indicates that the site falls within the red impact risk zone for GCN. In this zone, there is highly suitable habitat and a high likelihood of GCN presence. Indeed, the Council indicate there are 9 ponds within 500m of the site, including one just 12m east of the boundary, and there is direct connectivity between the development site and surrounding landscape features with no significant barriers for dispersal. This means that this transient species could potentially move between sites.
29. Natural England Standing Advice guides that surveys on ponds up to 500m from development sites should be requested. No ecological appraisal or survey has been advanced to support the proposal. Consequently, I am unable to rule out their presence.
30. Circular 06/2005 advises that such surveys should be carried out before planning permission is granted otherwise all relevant material considerations may not have been addressed in making the decision and should only be covered by a planning condition in exceptional circumstances. There are no exceptional circumstances in this case to indicate that surveys could be secured by condition. Furthermore, insufficient evidence is available to satisfy me that imposing a condition to secure a district level licence in respect of GCNs would be reasonable.

- Conclusions on trees and protected species

31. For the above reasons, I am not satisfied that the effect of the development on either the trees or the ecological value of the site, including protected species

would be acceptable. This would conflict with GLPSS Policy ID4 and GLPDMP Policy P7, the objectives of which I have already set out. It would also run counter to Policies N2 and N3 of the Framework, which seek to minimise impacts on biodiversity and retain existing trees wherever possible. Moreover, in respect of GCN, it also fails to accord with the requirements of the Habitat Regulations.

Living conditions – privacy

32. Grandview House occupies a spacious plot and is orientated westwards towards extensive front gardens. Additional lawned garden areas lie to its southern side and rear where there is also a patio area, which are largely enclosed by established vegetation.
33. The proposed dwelling would be positioned within the south-eastern part of the garden and would take the form of a one-and-a-half storey building, with its principal elevation facing south towards Broad Street. The plans indicate that the proposed L-shaped plot would be formed from part of the existing residential curtilage of Grandview House, comprising approximately one quarter of the existing garden area.
34. The rear elevation of the proposed dwelling contains a four panelled full height bedroom window at first floor and a skylight serving its ensuite. The full height window would afford views towards the north, over its own garden. However, it would also facilitate direct views towards the rear garden of Grandview House which would be only approximately 10m away.
35. On my site visit, I observed the existing patio area to the east of Grandview House has direct access into the house, and is laid out with garden furniture. This indicates the patio is, and would likely continue to be, a well-used part of the garden and one where occupiers would expect privacy. Given the size and full height design of the bedroom window, views out are likely to be more sustained than fleeting which would give rise to direct overlooking of the neighbours currently private garden in close proximity, thus resulting in an unacceptable loss of privacy.
36. On the southern elevation of Grandview House there is a large first-floor window and a smaller window within the gable, serving the roof space. Whilst the function of these windows has not been identified, neither is obscure glazed and both appear capable of serving habitable rooms. The submitted plans indicate that the nearest part of the proposed dwelling would be approximately 14.7m from the side elevation of Grandview House and would be positioned closer still to the proposed shared boundary between the two plots.
37. As a consequence, there would be opportunities for occupiers of Grandview House to overlook parts of the proposed dwelling's garden area, albeit at an oblique angle. Similarly, there would be a degree of mutual overlooking between the south-facing windows of Grandview House and the four-panel, full-height bedroom window within the western side elevation of the proposed dwelling. While the intervening distances between these windows would exceed the annotated 14.7m shown on the plans, the relationship would nevertheless be compromised and permit appreciable intervisibility.
38. I have not been directed to any adopted policy or supplementary guidance specifying minimum separation distances applicable in these circumstances. Accordingly, I must rely on my planning judgement in assessing the acceptability

of the relationships. Taking account of the positioning and orientation of the respective windows, together with the relatively limited degree of separation arising from the subdivision of the existing plot, I find that the proposal would result in a material erosion of privacy for the existing occupiers and one that would be detrimental to future occupiers. Whilst the overlooking would be predominantly oblique, this effect would represent a further compromise to living conditions that weighs against the proposal.

39. Taking all these matters into consideration, I find that the distance between dwellings is insufficient to meet the needs of privacy for both existing and future occupiers. Although I note that Grandview House is currently within the control of the appellant, ownership can change and it is important to safeguard privacy for future occupiers. The development is therefore contrary to Policy D5 of the GLPDMP, which amongst other things expects proposals to avoid unacceptable effects in terms of privacy and overlooking.

Character and appearance

40. The prevailing character along the northern side of Broad Street is defined by ribbon development, typically comprising two-storey dwellings set at broadly consistent distances from the rear edge of the pavement. These properties generally feature modest front gardens and frontage parking. In addition, a small number of residential plots are located behind the Broad Street frontage, occupying larger and more spacious grounds. Grandview House is one such backland property.
41. The enclave as a whole is surrounded by mature and dense tree cover, which provides a strong sense of enclosure and containment. The built form exhibits a varied architectural character, including dwellings with pitched, hipped, half-hipped and gabled roofs, as well as properties incorporating forward-projecting gables. External materials are similarly diverse and include hanging tiles, smooth and roughcast render, red brick, and red brick with buff detailing. Consequently, the area displays a distinctly suburban character and is not characterised by a single, readily identifiable architectural style. Rather, its appearance is derived from the collective contribution of a variety of dwelling designs, forms and materials set within a verdant landscape setting.
42. The proposed dwelling would comprise a one-and-a-half-storey property with a broadly rectangular footprint. The design incorporates gabled dormers, full-height glazing and rooflights serving the first-floor accommodation. External materials are proposed to include red roof tiles, render and timber detailing, resulting in an appearance described by the appellant as being influenced by the Arts and Crafts style.
43. Whilst I am not aware of any properties within the immediate vicinity that exhibit a similar architectural style, the surrounding area is characterised by a varied built form and does not display a single, consistent architectural vernacular. The proposed dwelling would also be located to the rear of the established frontage development along Broad Street, limiting its visibility from the public realm. Furthermore, its overall height would be lower than that of many of the dwellings fronting Broad Street.
44. Although the design does not directly replicate the appearance of neighbouring properties, the proposed palette of materials broadly reflects those found within the

locality and it is of similar scale to other backland dwellings. Given the site's discreet position, the variety of built form in the surrounding area and the limited prominence of the development in public views, the proposal does not result in harm to the character and appearance of the area. Accordingly, I find no conflict with Policy D4 of the GLPDMP, which amongst other things seeks to achieve high quality design that respects local distinctiveness. Neither do I find conflict with Policy DP3 of the Framework for the same reasons.

Sustainable design

45. To help achieve national and local objectives relating to climate change, the prudent use of natural resources, waste reduction and environmental sustainability, Policy D14 of the GLPDMP requires new development to incorporate sustainable design principles. In particular, the policy expects development to be energy efficient, utilise sustainable construction materials and techniques, be designed to have a long useful life, and have the ability to evolve with changing lifestyles. These objectives are reflected in part 1) of the policy, which requires proposals to demonstrate that they have adopted a fabric-first approach in accordance with the energy hierarchy.
46. These requirements are reinforced by Policy D16 of the GLPDMP, which strongly supports low and zero-carbon development. Amongst other matters, the policy requires new buildings to achieve an emissions rate no greater than the relevant Target Emission Rate set out in Part L of the Building Regulations. Together, these policies seek to ensure that new development minimises energy demand and contributes positively towards wider sustainability and climate change objectives.
47. The Council's Climate Change Sustainable Design, Construction and Energy Supplementary Planning Document (SPD) provides guidance, which sets out that for non-major development, applications must include sustainability information proportionate to the size of the development and adequate information to show how the requirements have been met.
48. The appellant has submitted a completed Climate Change, Energy and Sustainable Development Questionnaire, which is intended for developments of up to nine dwellings and is therefore appropriate to the proposal. The questionnaire commits to a range of sustainable design measures, including a fabric-first approach, enhanced insulation, improved airtightness and thermal bridging, all aimed at minimising energy loss, reducing heating demand, and limiting energy and water consumption.
49. Although the information provided is not detailed, it confirms that SAP calculations would be undertaken to demonstrate that the dwelling would exceed the requirements of Part L of the Building Regulations, and that further sustainable construction measures would be incorporated to meet relevant policy objectives. The evidence before me suggests that this pro forma approach is a standardised process and that any necessary details could be secured through suitably worded planning conditions.
50. Consequently, I am satisfied that the proposal is capable of achieving the sustainable design objectives of the development plan, particularly those set out in Policies D14 and D16 of the GLPDMP and Policy D2 of the GLPSS. This approach reflects that of the Framework and it follows that I find no conflict with it.

Other Matters

51. My attention has been drawn to a Certificate of Lawfulness granted by the Council in May 2024 (Planning Ref: 24/P/00189) for the erection of a detached outbuilding incidental to the enjoyment of Grandview House. Although only limited information has been provided in relation to that proposal, it is understood to occupy a broadly similar position within the site and is advanced as a realistic fallback position.
52. However, the lawful outbuilding would be materially different from the development now proposed. It would be limited to a single-storey structure and would not provide a separate dwellinghouse. As such, the nature and extent of its effects would not be directly comparable, particularly in relation to privacy and residential amenity, and it does not alter my assessment of those matters.
53. Furthermore, no detailed site plan has been provided showing the relationship between the lawful outbuilding and the retained trees. In the absence of such evidence, it is not possible to undertake a meaningful comparison between the fallback position and the proposal before me in terms of their respective impacts on the site's arboricultural features.
54. Having found that the proposed development would not cause harm to the Green Belt or to the character and appearance of the area, a detailed comparative assessment of the fallback position is not necessary in respect of those considerations.
55. The proposal would provide a minor, but important boost to housing stock where there is an urgent, pressing need for housing. The proposal is advanced as a self-build/custom-build dwelling. However, due to concerns with enforceability and without substantive evidence to persuade me otherwise, I am not satisfied that this could be secured by condition as the Council suggest, and I give this benefit only limited positive weight. Nevertheless, there would be other benefits including those to the economy during the construction period, likely increases in local expenditure and the ability for occupiers to help support local services including a nearby school, whilst located in a reasonably sustainable location for its semi-rural context. Taken together, the benefits attract considerable weight in favour of the proposal.
56. However, as I have set out, the effect of the development on the integrity of the habitat site is a strong reason for refusal. This finding aligns with Policy N6 of the Framework which indicates that in such circumstances planning permission should be refused. Additionally, given the lack of information available, I am unable to rule out harm to GCN, a protected species. This conflicts with Policy N2(2) of the Framework. I attach substantial weight to these harms. Furthermore, I cannot rule out an adverse impact on trees within the site and there would be demonstrable harm to the living conditions of existing and proposed occupiers due to insufficient distances between dwellings to meet the needs of privacy. Collectively, these harms are substantial and bring the scheme into conflict with the decision-making policies of the Framework taken as a whole, an important material consideration. Although there are weighty benefits, they would not outweigh the conflict with the development plan, or those contained within the Framework.

Conclusion

57. For the reasons set out above, the appeal should be dismissed.

C Walker

INSPECTOR